



POLICE DEPARTMENT

April 26, 2022

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202003879 regarding Police Officer Andre Gaddy, Tax No. 966581

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's ("CCRB") request for Charges/Specifications in connection with CCRB Case No. 202003879, pertaining to Police Officer Gaddy. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Gaddy would be detrimental to the Police Department's disciplinary process.

The CCRB substantiated one force allegation against Police Officer Gaddy for utilizing his baton to push an individual to the ground at a time when said individual did not pose an immediate threat to Police Officer Gaddy or any other uniformed members of the service or individuals present at the scene. Police Officer Gaddy was at the scene of a large scale protest that had been declared an unlawful assembly. While at the scene, Police Officer Gaddy, together with other uniformed members of the service, was given an order to disperse the gathered crowd and to effectuate arrests of anyone who failed or refused to comply with the order to vacate the area. Police Officer Gaddy then moved in to disperse several members of the gathered crowd and in doing so utilized his baton inappropriately.

While wrong, the actions of Police Officer Gaddy do not rise to the level of misconduct where the issuance of Charges and Specifications is warranted. Instead, based on the totality of the circumstances, and in the interest of progressive discipline, an imposition of a Schedule "A" Command Discipline is the more appropriate penalty. Additionally, the relative inexperience of Police Officer Gaddy, as well as his unblemished record with the Department, must also be considered when determining a commensurate penalty.

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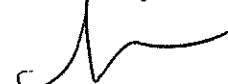
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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, and based on the interests of justice, the Police Commissioner intends to retain jurisdiction over this matter and issue a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days.

If you have any questions, please feel free to contact me at 646-610-5577.

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', with a stylized, flowing script.

Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office